

# HOUSE . . . . . No. 1987

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Adam J. Scanlon and Hannah Kane*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish a DNA exception rule for victims of rape.

PETITION OF:

| NAME:                          | DISTRICT/ADDRESS:       | DATE ADDED:      |
|--------------------------------|-------------------------|------------------|
| <i>Adam J. Scanlon</i>         | <i>14th Bristol</i>     | <i>1/6/2025</i>  |
| <i>Hannah Kane</i>             | <i>11th Worcester</i>   | <i>1/6/2025</i>  |
| <i>Dennis C. Gallagher</i>     | <i>8th Plymouth</i>     | <i>1/22/2025</i> |
| <i>Brian M. Ashe</i>           | <i>2nd Hampden</i>      | <i>1/22/2025</i> |
| <i>Natalie M. Higgins</i>      | <i>4th Worcester</i>    | <i>1/24/2025</i> |
| <i>Bradley H. Jones, Jr.</i>   | <i>20th Middlesex</i>   | <i>1/29/2025</i> |
| <i>Carmin Lawrence Gentile</i> | <i>13th Middlesex</i>   | <i>2/17/2025</i> |
| <i>Michael O. Moore</i>        | <i>Second Worcester</i> | <i>3/6/2025</i>  |
| <i>Adrienne Pusateri Ramos</i> | <i>14th Essex</i>       | <i>3/6/2025</i>  |

# HOUSE . . . . . No. 1987

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By Representatives Scanlon of North Attleborough and Kane of Shrewsbury, a petition (accompanied by bill, House, No. 1987) of Adam J. Scanlon, Hannah Kane and others relative to the statute of limitations for the crime of rape and establishing a DNA exception rule. The Judiciary.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to establish a DNA exception rule for victims of rape.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 97B ½ of chapter 41 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by inserting, in line 20, after the word “cases” the following  
3   words:- ; provided, however, that all kits shall be retained for no less than 15 years.

4           SECTION 2. Said section 97B ½ of said chapter 41 of the General Laws, as so appearing,  
5   is hereby further amended by inserting, in line 26, after the word “enforcement” the following  
6   words:- , notwithstanding the statute of limitations of the underlying offense.

7           SECTION 3. Section 63 of chapter 277 of the General Laws, as so appearing, is hereby  
8   amended by inserting after the sixth sentence the following sentence:-

9           Notwithstanding the above, an indictment or complaint for an offense set forth in sections  
10   22, 22A, 22B, 22C, 23, 23A or 23B of chapter 265 may be found and filed at any time after the  
11   date of the commission of such offense if the identity of the person who allegedly committed the

12 offense: (1) was identified after the limitation period set forth in this section; and (2) the identity  
13 has been established through a DNA record, as defined in section 1 of chapter 22E, using  
14 evidence collected at the time of the commission of the offense.